

the Peace. The procurement of, and assent to, the battery were not proved in him, otherwise the Court would have fined him for it.

Rowlande Hille, plaintiff, against ¹ Corbette for riot in this manner: by commanding his servants to challenge Hille and terrify him in his house, being [Corbette's] tenant; and it had no effect; but for this he [Corbette] was fined £40, and his servants £100 each. Sentence *Quicquid est extra causam est in persona*, and so *iudicium est suspiciosum et temerarium*.

HILL
v.
CORBETTE
Riot
Sentence

In the Chancery, on the last day of term, one was committed to the Fleet for buying a statute and a bond and suing thereon in the name of another, the which he confessed.

In the
Chancery

And a fine and recovery were stayed *quia l'enfante en ventre sa mere*. Willoughbye and Willoughbye.

In Camera Stellata, coram consilio ibidem, Die veneris 15^o Aprilis, An^o Doⁿⁱ 1597, Elizab. 39, termino pasche.²

[p. 40]
1597
April 15

In the first cause of hearing the Attorney was plaintiff, and because process was not served but five days before, it was ordered that it should come in course the next day as the Queen's Attorney was a party, otherwise not.

ATT.-GEN.,
Pl.

Aldworthe, plaintiff, Smallman and others, defendants, for riot and practice of conveying³ an idiot. One was found an idiot in the Court of Wards on the surmise of Smallman, and was committed to his ward, and then he traversed the office and was found very simple and foolish but not an idiot from his birth, and it was so decreed in the Court of Wards; and he [the un-named idiot] was removed from Smallman, his stepfather, to Aldworthe, his uncle, and Smallman was ordered to account for £700 arrears, which

ALDWORTHE
v.
SMALLMAN
and others,
Riot, &c.

¹ Blank in MS.

² Seven Councillors were present.

³ Carrying off or stealing. 'Convey,

the wise it call: steale? foh: a fico
for the phrase.' *Merry Wives of
Windsor*, act i. sc. 3.